		manner he deems best.'" (*Magee v. Superior Court* (1973) 8 Cal.3d 949, 952, quoting *People v. Crovedi* (1966) 65 Cal.2d 199, 208.) Thus, the "right to appear by retained counsel of one's choice will tolerate the denial of an application for association only in extreme circumstances, although the attorney permitted to appear as counsel *pro hac vice* is "subject to the jurisdiction of the courts of California with respect to the law governing the conduct of attorneys." (*Magee v. Superior Court* (1973) 8 Cal.3d 949, 953, fn. 1.) Here, all of the requirements for *pro hac vice* admission have been met and the application is not opposed. The court will therefore grant the application. Defendant shall give notice of this ruling.
3	**Iserhien vs. The Irvine Company LLC** **30-2026-01539629**	<u>Motion to Compel Arbitration</u> Defendants The Irvine Company LLC's and Pilar Swenson's Motion Petitioning this Court to Stay this Action and Compel Arbitration is GRANTED. The parties are ORDERED to arbitrate the claims between them that are asserted in this action. This action shall be STAYED pending completion of the arbitration proceedings. The court SETS an ADR Review Hearing for January 21, 2027, at 10:00 a.m. in Department N15. <u>Pending Motion</u> Defendant The Irvine Company LLC's and Pilar Swenson move to compel arbitration of the claims asserted in the Complaint – Personal Injury, Property Damage, Wrongful Death (Complaint) filed by Plaintiff Brenna Emilia Valentina Iserhien and to stay this action pending completion of the arbitration proceedings. <u>Standard for Compelling Arbitration</u> The law of this state with respect to arbitration agreements is contained in the California Arbitration Act (CAA), Civil Procedure Code section 1280, *et seq.* Under the CAA, when a party to an arbitration agreement refuses to submit to arbitration, the other party may petition

		the court to compel arbitration and stay any pending lawsuit. (See Code Civ. Proc., § 1281.2; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) However, the right to arbitration is based on contract. (See *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565.) Thus, the parties also may agree in the contract that the arbitration will be controlled by the Federal Arbitration Act (FAA). In addition, "[t]he FAA applies to any 'contract evidencing a transaction involving commerce' that contains an arbitration provision." (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 238, quoting 9 U.S.C. § 2.) The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) The United States Supreme Court has described 9 U.S.C. section 2 as reflecting both a "'liberal federal policy favoring arbitration,'" and the "'fundamental principle that arbitration is a matter of contract.'" (*AT & T Mobility LLC v.* Concepcion (2011) 563 U.S. 333, 339, quoting *Moses H. Cone Memorial Hospital v. Mercury Constr. Corp.* (1983) 460 U.S. 1, 24 and *Rent–A–Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 67.) As with the CAA, when a party to an arbitration agreement governed by the FAA refuses to submit to arbitration, the other party may petition the court to compel arbitration and stay any pending lawsuit. (See 9 U.S.C. § 4.) On a motion to compel arbitration under the FAA, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; see *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration."].) When deciding whether a valid arbitration agreement exists, courts generally apply "ordinary state-law principles that govern the formation of contracts." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.) Thus, the FAA permits arbitration agreements to be invalidated by "'generally applicable contract defenses, such as fraud,

duress, or unconscionability.'" (*AT & T Mobility LLC v. Concepcion*, *supra*, 563 U.S. at p. 339, quoting *Doctor's Associates, Inc. v. Casarotto* (1996) 517 U.S. 681, 687.)

The party seeking to compel arbitration bears an initial burden to make a *prima facie* showing the claims asserted in the complaint are covered by a valid agreement to arbitrate. (*Molecular Analytical Systems v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 710-711.) Then, "the party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (*Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.)

<u>Existence of Arbitration Agreement</u>

With regard to the existence of an agreement to arbitrate, the party seeking to compel arbitration bears "the ultimate burden of proof, but the court [is] obliged to resolve the dispute using a three-step burden-shifting process." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

The Court of Appeal explained that this process requires that:

> The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. A movant can bear this initial burden "by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature." At this step, a movant need not "follow the normal procedures of document authentication" and need only "allege the existence of an agreement and support the allegation as provided in rule [3.1330]."
>
> If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence — in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not *prove* that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.

(*Ibid.*, citations omitted, quoting *Espejo v. Southern California Permanent Medical Group* (2016) 246 Cal.App.4th 1047, 1060 and *Condee v. Longwood Management Corp.*, *supra*, 88 Cal.App.4th at pp 218-219.)

The Court of Appeal in *Condee v. Longwood Management Corp.* held that the party seeking arbitration was only required to state or provide the provisions of the agreement requiring arbitration. (*Condee v. Longwood Management Corp.*, *supra*, 88 Cal.App.4th at pp. 218-219.)

The party requesting arbitration was not required to follow the normal procedures to authenticate documents and Section 1281.2 "does not require the petitioner to introduce the agreement into evidence." (*Ibid.*)

Here, Defendants submit the Addendum for Arbitration of Disputes and Class Action Waiver (Arbitration Agreement), attached to the Lease Agreement between Defendant The Irvine Company LLC and Darya Myers (Lease). (See Decl. of Melissa Matosic in Supp. of Defendants' Mot. Petitioning this Court to Stay this Action and Compel Arbitration (Matosic Decl.), Exh. A at pp. 17-18.)

The Arbitration Agreement "shall be governed by, and all questions and disputes regarding arbitrability shall be determined in accordance with, the Federal Arbitration Act, 9 U.S.C. Sections l-16, notwithstanding any other choice of law provision." (*Id.* at p. 17.)

The burden then shifts to Plaintiff to identify a factual dispute as to the agreement's existence.

However, Plaintiff has failed to file an opposition or respond to the motion. Thus, Plaintiff has waived any arguments regarding the motion. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].)

Therefore, Defendants have established the existence of a valid arbitration agreement under the FAA.

<u>Compelling Arbitration Against Non-Signatory</u>

As noted above, the right to arbitration depends upon contract. (*Little v. Pullman*, *supra*, 219 Cal.App.4th at p. 565.)

Here, there is no evidence that Plaintiff agreed to arbitrate her disputes against Defendants. Specifically, neither the Lease nor the Arbitration Agreement is signed by Plaintiff nor does either document make mention of Plaintiff.

However, courts recognize "six theories by which a nonsignatory may [compel or] be bound to arbitrate: '(1)

		incorporation by reference; (2) assumption; (3) agency; (4) veil-piercing or alter ego; (5) estoppel; and (6) third-party beneficiary.'" (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513, quoting 2 Oehmke, Commercial Arbitration (3d ed. 2006 update) § 41.57 at pp. 41–195.) These exceptions to the general rule that one must be a party to invoke or be bound by an arbitration agreement "generally are based on the existence of a relationship between the nonsignatory and the signatory, such as principal and agent or employer and employee, where a sufficient 'identity of interest' exists between them." (*Jones v. Jacobson* (2011) 195 Cal.App.4th 1, 18 & fn. 9.) Here, Defendant The Irvine Company, LLC's site manager, Melissa Matosic, declares that Darya Myers, a signatory to the Lease and Arbitration Agreement, is the mother of Plaintiff. (See Matosic Decl., ¶ 6.) Defendants argue that Plaintiff thus is bound to arbitrate this case as a third-party beneficiary to the Lease and Arbitration Agreement. It is not clear that Matosic has provided the proper foundation to state relationship between Darya Myers and Plaintiff. Nor is it obvious that Plaintiff is a third-party beneficiary of the Lease and Arbitration Agreement, particularly as Plaintiff is mentioned nowhere in those documents. However, Plaintiff has not objected to Matosic's declaration nor has she filed an opposition or other response to this motion. Plaintiff therefore has waived any objections or arguments. The parties may agree to arbitrate their disputes at any time. Plaintiff's waiver and non-opposition is akin to an agreement to arbitrate. Further, Defendants have made a non-frivolous argument that Plaintiff is bound to arbitrate this dispute. Thus, Defendants have shown that Plaintiff is bound to arbitrate. (fn.1) (fn.1) There also is a question whether Defendant Pilar Swenson, who is not a signatory to the Lease or Arbitration Agreement, may enforce its provisions. Defendants argue that Defendant Pilar Swenson may enforce the Arbitration Agreement as an employee of Defendant The Irvine Company LLC, which is a signatory; as a third-party beneficiary; and under the equitable estoppel doctrine. While the court has doubts about the first two of these bases, at a minimum, the third basis constitutes a non-frivolous argument. (See *Rowe*

		v. Exline (2007) 153 Cal.App.4th 1276, 1287 ["The equitable estoppel doctrine applies when a party has signed an agreement to arbitrate but attempts to avoid arbitration by suing nonsignatory defendants for claims that are 'based on the same facts and are inherently inseparable' from arbitrable claims against signatory defendants."].) In light of the fact that Plaintiff has not challenged Defendant Pilar Swenson's attempt to enforce the Arbitration Agreement or otherwise opposed the motion, the court need not address this issue further. <u>Scope of Arbitration Agreement</u> Before the parties can be ordered to arbitration, the court must carefully examine the terms of the contract and apply the statutory rules of contract interpretation. (See *Bono v. David* (2007) 147 Cal.App.4th 1055, 1063.) One overriding rule is that "[a] contract must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civil Code, § 1636.) The parties' intent "is to be inferred, if possible, solely from the written provisions of the contract, and the 'clear and explicit' meaning of these provisions, interpreted in their 'ordinary and popular sense,' controls judicial interpretation unless 'used by the parties in a technical sense, or unless a special meaning is given to them by usage.'" (*Montrose Chemical Corp. v. Admiral Ins. Co.* (1995) 10 Cal.4th 645, 647, quoting Civil Code, §§ 1638, 1639, 1644, citations omitted.) Therefore, "[i]f the meaning a layperson would ascribe to the language of a contract of insurance is clear and unambiguous, a court will apply that meaning." (*Montrose Chemical Corp. v. Admiral Ins. Co.*, *supra*, 10 Cal.4th at p. 647; see *Bank of the West v. Superior Court* (1992) 2 Cal.4th 1254, 1264 ["If contractual language is clear and explicit, it governs."].) However, "[i]f the terms of a promise are in any respect ambiguous or uncertain, it must be interpreted in the sense in which the promisor believed, at the time of making it, that the promisee understood it." (Civil Code, § 1649.) The contract provision also "may be explained by reference to the circumstances under which it was made, and the matter to which it relates." (Civil Code, § 1647; see *Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353 [same].) In interpreting an arbitration agreement, "[t]he whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to

		interpret the other." (Civil Code, § 1641; see *Ticor Title Ins. Co. v. Rancho Sante Fee Ass'n* (1986) 177 Cal.App.3d 726, 730 ["A court must view the language in light of the instrument as a whole and not use a "disjointed, single-paragraph, strict construction approach.'"], quoting *Ezer v. Fuchsloch* (1979) 99 Cal.App.3d 849, 861.) In many cases, "the decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is 'broad' or 'narrow.'" (See *Bono v. David*, *supra*, 147 Cal.App.4th at 1067.) "A 'broad' clause includes those using language such as 'any claim arising from or related to this agreement,'" (*ibid.*, citation omitted), or "'arising in connection with the [a]greement,'" (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 186, quoting *Simula, Inc. v. Autoliv, Inc.* (9th Cir. 1999) 175 F.3d 716, 720–721). Here, the Arbitration Agreement states that: > Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this provision to arbitrate ('Claim' or 'Claims') shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator. (Matosic Decl., Exh. A at p. 17.) Arbitration clauses such as this one have been classified as "broad" provisions. Under a broad arbitration provision, the "'factual allegations need only 'touch matters' covered by the contract containing the arbitration clause and all doubts are to be resolved in favor of arbitrability.'" (*Rice v. Downs*, *supra*, 248 Cal.App.4th at p. 186, quoting *Simula, Inc. v. Autoliv, Inc.*, *supra*, 175 F.3d at p. 721). Even a tort arising under or from a contract may be within the scope of a broad contractual arbitration provision. (*Coast Plaza Doctors Hosp. v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 689; see also *Rice v. Downs*, *supra*, 248 Cal.App.4th at p. 186 [even under broad arbitration provision, "tort claims must 'have their roots in the relationship between the parties which was created by the contract' before they can be deemed to fall within the scope of the arbitration provision." (*Rice v. Downs*, *supra*, 248

		Cal.App.4th at p. 188, quoting *Bos Material Handling, Inc. v. Crown Controls Corp.* (1982) 137 Cal.App.3d 99, 105.) Here, Matosic declares that the Lease is the reason Plaintiff resided on the relevant premises where the accident occurred. (See Matosic Decl., ¶¶ 2-3; see also Compl., Second Cause of Action, ¶ GN-1.) Defendants contend that, therefore, Plaintiff's claims arise out of or relate to the Lease. Consequently, the Lease Agreement is the root of Plaintiff's relationship with Defendant and the claims asserted herein arise therefrom. Again, Plaintiff has not objected to Matosic's declaration or otherwise opposed or responded to Defendants' argument, and thus, have waived any such objections or arguments. Accordingly, Defendants have established that Plaintiff's claims fall within the scope of the Arbitration Agreement. The court is required to grant the motion to compel arbitration. Defendants shall give notice of this ruling.
4	**Siddall vs. General Motors LLC** **30-2025-01465254**	<u>Motion to Strike and/or Tax Costs</u> Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs is GRANTED in part and DENIED in part. Defendant General Motors LLC is ORDERED to pay Plaintiff Marisol Siddal $2,529.39 in costs within 30 days of receiving notice of this ruling. <u>Pending Motion</u> Defendant General Motors moves to tax costs from the Memorandum of Costs filed by Plaintiff Marisol Siddal. <u>Standard to Seek Costs – Prevailing Party</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.) The "prevailing party" includes "the party with a net monetary recovery, a defendant in whose favor a dismissal is